

NON-DISCRIMINATION ON THE BASIS OF A
DISABILITY FOR SCHOOL-AGE STUDENTS

This regulation supports the implementation of Policy 8030 and is designed to eliminate acts of discrimination against students on the basis of disability in any program or activity offered by the Loudoun County Public Schools pursuant to Section 504 of the Rehabilitation Act of 1973 ("Section 504"), as amended, and the Americans with Disabilities Act ("ADA"). This regulation establishes procedures for the prompt, equitable, and impartial resolution of complaints with respect to any alleged discrimination on the basis of disability for such students.

A. Grievance Procedure. Persons who believe that the school division has discriminated against a student on the basis of disability and thus violated Section 504 or the ADA can file a written grievance with the school division's Section 504 Coordinator. Once a written grievance is received, the school division will investigate the allegations contained in the written grievance in an effort to reach a prompt and equitable resolution.

1. Filing. The grievance must be in writing. At a minimum, it must contain (1) the nature of the grievance; (2) the facts upon which the grievance is based, including a list of all witnesses; (3) the remedy requested; and (4) the complainant's signature and the date the grievance is filed.

- a. The written grievance must be filed with the school division's Section 504 Coordinator ("coordinator") at the following address:

Section 504 Coordinator
Loudoun County Public Schools
21000 Education Court
Ashburn, Virginia 20148

- b. The grievance should be reported as soon as possible, but not later than thirty (30) school days after the occurrence. This time frame may be lengthened for extraordinary circumstances.
- c. The complainant must have the opportunity to present verbal and written evidence.

2. Investigation. The coordinator or designee will independently investigate the allegations to determine whether the school division is in compliance with Section 504 and the ADA. The coordinator or designee will provide a written report of the investigation to the complainant within thirty (30) school days of receipt of the complaint. The report should include the following information:

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- a. A statement of the complainant's allegations and the remedy sought;
- b. A statement of facts as contended by each party;
- c. A narrative describing attempts to resolve the grievance;
- d. A list of the witnesses interviewed, and the documents reviewed during the investigation;
- e. A statement of facts as determined by the coordinator or designee with reference to the evidence to support each fact;
- f. The coordinator or designee's conclusion as to whether the allegations are valid; and
- g. If the coordinator or designee determines that the allegations are valid, the report should include any corrective action determined by the coordinator or designee.
- h. An extension of the thirty (30) school-day time limit for submitting the written report may occur if necessary, as determined by the coordinator or designee. The complainant will be notified in writing of the extended time limit.

3. Appeal. The complainant shall have an opportunity to make a written appeal to the school division's superintendent within ten (10) school days of receiving the coordinator's report. Following an appeal, the superintendent or the superintendent's designee will review the complainant's appeal along with the coordinator's report and then respond in writing to the complainant within thirty (30) school days of receiving the appeal. The superintendent or the superintendent's designee shall either confirm or disapprove the coordinator or designee's decision.

- a. An extension of the thirty (30) school-day time limit may occur if necessary, as determined by the superintendent or the superintendent's designee. The complainant will be notified in writing of the extended time limit.

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4. Retaliation. Retaliation against a complainant or anyone who reports discrimination or participates in a grievance investigation is prohibited. If this occurs, the individual may file a complaint with the school division.

[Former Regulation 8-6A]

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Leg Ref: [Americans with Disabilities \(ADA\) Act Amendments Act of 2008; Section 504 of the Rehabilitation Act of 1973](#)